

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cloey Romans	Team: Squad #15	CCRB Case #: 202100898	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Sunday, 02/07/2021 6:35 PM	Location of Incident: 28th Precinct stationhouse	18 Mo. SOL 8/7/2022	Precinct: 28		
Date/Time CV Reported Tue, 02/09/2021 10:52 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 02/09/2021 10:52 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Robert Uribe	20097	937662	028 PCT
2. POM Kazi Ahmed	7372	968213	028 PCT
3. PO Marcelo Espinoza	20073	962388	028 PCT
4. LT Mervin Bennett	00000	920019	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joseph Amato	26432	927855	28 PCT HUB
2. PO Danielle Hankerson	23415	943346	028 PCT
3. PO Damian Weber	25697	967387	028 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . POM Robert Uribe	Force: Police Officer Robert Uribe used physical force against § 87(2)(b)	A . Substantiated
B . POM Kazi Ahmed	Force: Police Officer Kazi Ahmed used physical force against § 87(2)(b)	B . Substantiated
C . LT Mervin Bennett	Discourtesy: Lieutenant Mervin Bennett spoke discourteously to § 87(2)(b)	C . Substantiated
D . LT Mervin Bennett	Force: Lieutenant Mervin Bennett hit § 87(2)(b) against the ground.	D . Substantiated
E . POM Robert Uribe	Force: Police Officer Robert Uribe hit § 87(2)(b) against the ground.	E . Substantiated
F . POM Robert Uribe	Force: Police Officer Robert Uribe hit § 87(2)(b) against the ground.	F . Substantiated
G . PO Marcelo Espinoza	Force: Police Officer Marcelo Espinoza hit § 87(2)(b) against the ground.	G . Substantiated
H . POM Robert Uribe	Abuse: Police Officer Robert Uribe did not obtain medical treatment for § 87(2)(b)	H . Substantiated
I . POM Robert Uribe	Discourtesy: Police Officer Robert Uribe spoke discourteously to § 87(2)(b)	I . Substantiated

Case Summary

On February 9, 2021, § 87(2)(b) submitted the following complaint with the CCRB via Call Processing System.

At approximately 12:43 p.m. on February 7, 2021, § 87(2)(b) and Steven Palmer were arrested by Det. Kendrick Victoria and PO Timothy Chin for Petit Larceny at Whole Foods located at 100 West 125th Street, Manhattan. § 87(2)(b) was removed to the 28th Precinct Stationhouse and processed for arrest. At approximately 4 p.m., Det. Victoria and PO Chin ended their tours and left the command.

At approximately 6:15 p.m., PO Robert Uribe and PO Kazi Ahmed of the 28th Precinct were directed by Lt. Thomas Lent to transport § 87(2)(b) to Manhattan Central Booking. After removing § 87(2)(b) from the holding cells, PO Uribe and PO Ahmed pushed § 87(2)(b) against the holding cell wall and onto a desk (**Allegations A and B: Force – Substantiated**). Lt. Mervin Bennett of the 28th Precinct heard the struggle while he was standing behind the supervisor's desk and made the directive to "Bring that motherfucker to the ground" (**Allegation C: Discourtesy – Substantiated**) and PO Uribe grabbed § 87(2)(b) ankles and pulled him onto the ground where § 87(2)(b) hit the floor (**Allegations D and E: Force – Substantiated**). PO Uribe proceeded to handcuff § 87(2)(b) while he was facedown, and PO Ahmed shackled § 87(2)(b) ankles. PO Uribe picked § 87(2)(b) upper body up in preparation for transport, then dropped him on the ground when he learned PO Ahmed had not finished shackling (**Allegation F: Force – Substantiated**). Lt. Bennett then gave the directive for PO Uribe, PO Ahmed, PO Marcelo Espinoza, and PO Damian Weber to carry § 87(2)(b) out of the precinct facedown, with each officer grabbing one of § 87(2)(b) limbs. Upon reaching the exterior stationhouse door, PO Espinoza let go of § 87(2)(b) and dropped him on his head to open the door (**Allegation G: Force – Substantiated**). Once outside, the officers placed § 87(2)(b) into the rear of PO Uribe and PO Ahmed's police vehicle. § 87(2)(b) said that he was injured, and PO Uribe responded, "Stop running your fucking mouth" (**Allegation H: Abuse – Substantiated, Allegation I: Discourtesy – Substantiated**). § 87(2)(b) was then transported to Manhattan Central Booking, before being returned to the 28th Precinct stationhouse and released the following morning.

§ 87(2)(b)

§ 87(2)(b) sought medical treatment by himself at § 87(2)(b) Hospital and § 87(2)(b) Hospital after he was released. § 87(2)(a) – PHL 18(6) § 87(2)(b) did not sign HIPAA forms so the investigation was not able to obtain any medical records.

Six BWC videos were yielded and are linked in the case file as IAs #165-170 (Board Review 02 through 07). Stationhouse footage is linked in IA #80 (Board Review 08). No other surveillance or video evidence was obtained during the investigation.

Findings and Recommendations

Allegation (A) Force: Police Officer Robert Uribe used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Kazi Ahmed used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed on March 17, 2021. § 87(2)(b) could not be reached and did not provide a statement. No other civilians or witnesses were identified. PO Ahmed was interviewed on January 26, 2022. PO Weber was interviewed on June 2, 2022. PO Uribe was interviewed on June 7, 2022. Lt. Bennett was interviewed on June 9, 2022. PO Espinoza was interviewed on June 10, 2022. Lt. Lent has retired and was not interviewed.

It is undisputed that a struggle ensued while attempting to handcuff § 87(2)(b) and that he was ultimately pushed into the holding cell wall and desk by PO Uribe and PO Ahmed.

§ 87(2)(b) and his friend, § 87(2)(b) were arrested at Whole Foods by Det. Victoria and PO Chin, without incident, and then removed to the 28th Precinct Stationhouse. Det. Victoria and PO Chin lodged § 87(2)(b) into the holding cells at approximately 1:00 p.m. After the officers finished processing and lodging § 87(2)(b) he did not see Det. Victoria or PO Chin again. At approximately 6:30 p.m., PO Uribe and PO Ahmed entered the holding cells and told § 87(2)(b) they would be transporting him to Manhattan Central Booking. PO Uribe opened the holding cell door and instructed § 87(2)(b) to step out and stand in the holding cell vestibule, then instructed § 87(2)(b) to cover his face with his mask because of the risk of COVID. § 87(2)(b) and PO Uribe argued briefly regarding the COVID-19 vaccine. While arguing, PO Uribe and PO Ahmed approached § 87(2)(b) from behind and attempted to handcuff him. The officers both repeatedly pulled § 87(2)(b) arms back roughly until a handcuff was placed on his left wrist. § 87(2)(b) then asked to put his jacket on, which was on a chair in the vestibule and proceeded to attempt to place it over the single handcuff. While doing so, the officers pushed § 87(2)(b) from behind into the holding cell wall, ultimately causing his upper body to hit a desk that was in front of the wall and his face to press against the holding cell wall. § 87(2)(b) was unable to recall what PO Uribe or PO Ahmed were saying during this time or what specific actions they took to push § 87(2)(b) against the wall. § 87(2)(b) had not been injured at this point or by this action (Board Review 09).

PO Ahmed and PO Uribe provided consistent testimony that after removing § 87(2)(b) from the holding cells, he refused to place his mask over his mouth. PO Uribe was concerned about the risk of COVID-19 transmission because he has an autoimmune disease. PO Uribe asked § 87(2)(b) to cover his mouth and § 87(2)(b) began arguing verbally but did not become physically combative. PO Uribe placed § 87(2)(b) left hand into a cuff, while PO Ahmed held § 87(2)(b) right hand. After the left cuff was placed, § 87(2)(b) pulled his arms away from the officers so that he could put his jacket on. The officers attempted to grab his arms again to finish handcuffing him and § 87(2)(b) attempted to straighten his hands to prevent the handcuffing. PO Uribe made the determination to limit § 87(2)(b) movement by pushing him into the holding cell wall, as he was taught to do in the Police Academy. PO Uribe then grabbed § 87(2)(b) left arm again, and with PO Ahmed holding § 87(2)(b) right arm, pushed § 87(2)(b) against the wall to finish handcuffing him. While pushing § 87(2)(b) PO Uribe and § 87(2)(b) tripped on a chair that was in front of the desk in the holding cell vestibule. This caused § 87(2)(b) body to be pushed against the wall and desk with greater force while PO Uribe and PO Ahmed were behind him (Board Review 13 and 14).

Lt. Bennett did not observe the removal of § 87(2)(b) from the holding cells as he was standing behind the supervisor's desk, approximately five feet away but without a clear line of sight because of the wall and posters which block the view into the holding cells vestibule. Lt. Bennett did not observe § 87(2)(b) being pushed against the holding cell wall and desk. Lt. Bennett heard a 'commotion' during this time, which he described as yelling, but did not recall what was said, who was arguing, or the contents of the argument (Board Review 15).

The stationhouse video illustrates § 87(2)(b) being pushed against the stationhouse wall and desk by PO Uribe and PO Ahmed, without any resistance or struggle beforehand (beginning at the 20:31 mark). The video shows § 87(2)(b) standing with both hands behind his back. PO Uribe has both his hands on § 87(2)(b) left hand and PO Ahmed has both his hands on § 87(2)(b) right hand. § 87(2)(b) is not gesticulating or resisting. PO Uribe turns § 87(2)(b) left arm behind his back and pushes him into the holding cell wall and desk, with PO Ahmed assisting by holding § 87(2)(b) right arm (Board Review 08).

Body-worn Camera (BWC) video from PO Ahmed illustrates § 87(2)(b) being pushed into the stationhouse wall and desk without a struggle beforehand (beginning at the 00:25 mark). PO Ahmed stands on § 87(2)(b) right-side while PO Uribe is on § 87(2)(b) left. The officers assist § 87(2)(b) in placing his jacket on, then grab his hands to complete cuffing him. Both § 87(2)(b) hands appear behind his back in position to be cuffed and he is not moving his arms in any form of resistance. PO Uribe twists § 87(2)(b) left arm and pushes him forward, against the wall and desk (beginning at the 00:56 mark). Once the audio activates at 01:00, it is not visible what the officers are doing but PO Uribe can be heard telling § 87(2)(b) to “stay right there” (Board Review 04).

NYPD Patrol Guide Procedure 221-01 details that officers will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force (Board Review 18).

§ 87(2)(g)
stationhouse video footage, the officer’s BWC video, and § 87(2)(b) statement corroborate that prior to being pushed into the wall and desk of the holding cells, there was no active physical resistance § 87(2)(g)

Therefore, it is recommended that **Allegations A and B be Substantiated.**

Allegation (C) Discourtesy: Lieutenant Mervin Bennett spoke discourteously to § 87(2)(b)

Allegation (D) Force: Lieutenant Mervin Bennett hit § 87(2)(b) against the ground.

Allegation (E) Force: Police Officer Robert Uribe hit § 87(2)(b) against the ground.

Allegation (F) Force: Police Officer Robert Uribe hit § 87(2)(b) against the ground.

It is undisputed that Lt. Bennett heard but did not see the struggle between § 87(2)(b) PO Uribe, and PO Ahmed, then gave the officers the directive to bring § 87(2)(b) to the ground. It is undisputed that PO Uribe grabbed § 87(2)(b) ankles to bring him to the ground, which ultimately caused him to fall facedown on the ground. It is undisputed that PO Uribe picked up § 87(2)(b) upper body while PO Ahmed was leg shackling him, then brought § 87(2)(b) back down to the ground when he learned PO Ahmed had not completed shackling him.

While § 87(2)(b) front body was pushed against the holding cell wall and desk, PO Uribe grabbed § 87(2)(b) ankles and lifted them off the ground, causing § 87(2)(b) to land face-first onto the ground. § 87(2)(b) believed both his hands were cuffed at this time. § 87(2)(b) remained motionless once face down on the ground while PO Uribe and PO Ahmed grabbed § 87(2)(b) ankles and shackled them. Several officers entered the holding cell area after § 87(2)(b) was finished being shackled and cuffed, then picked him up and dropped him. § 87(2)(b) was unable to provide further details on the specific process in which this happened. When § 87(2)(b) was pulled onto the ground by PO Uribe and his face hit the floor, § 87(2)(b) sustained a fracture to his jaw and facial bruising, which were treated at a hospital after his release (Board Review 09).

Once § 87(2)(b) front body was in contact with the wall and desk, PO Uribe and PO Ahmed

attempted to finish handcuffing him, but § 87(2)(b) straightened his arms so that the officers could not handcuff him. Lt. Bennett was still standing behind the supervisor's desk and could not see the struggle but heard it, then gave the directive to bring § 87(2)(b) to the ground. Lt. Bennett did not recall if he used the word "motherfucker" while giving this directive though PO Uribe confirmed Lt. Bennett's voice as having said these words after reviewing the Body-Worn Camera video (Board Review 04). Lt. Bennett did not have reason to believe a physical struggle was taking place beyond the yelling and Lt. Bennett did not know if § 87(2)(b) was being physically combative, only that he heard him being verbally combative by yelling. Lt. Bennett denied recalling what § 87(2)(b) was saying which led him to believe that § 87(2)(b) was being verbally combative. To his knowledge, Lt. Bennett had no reason to believe § 87(2)(b) had been physically combative with any officer at this time or prior to. Lt. Bennett gave the order to bring § 87(2)(b) to the ground solely upon what he heard, despite not being able to see § 87(2)(b). PO Uribe, PO Ahmed, or any physical struggle. Lt. Bennett made this directive because of a "Disorderly Control Training" he had taken at the Police Academy in October 2020 which taught that prisoner's movement can be further limited once on the ground. Lt. Bennett did not give specific directions on how § 87(2)(b) was to be brought to the ground and did not know how § 87(2)(b) body was positioned when he gave this direction. PO Uribe grabbed § 87(2)(b) ankles and lifted them off the ground while PO Ahmed held § 87(2)(b) right upper body and PO Andy Payero held § 87(2)(b) left upper body, then all three officers picked up § 87(2)(b) and placed him on the ground, facedown. PO Uribe denied pulling § 87(2)(b) onto the ground by his ankles. PO Ahmed confirmed that PO Uribe brought § 87(2)(b) to the ground but denied recalling the details of how this occurred. PO Ahmed believed that he was holding § 87(2)(b) left side while PO Uribe brought § 87(2)(b) to the ground and that § 87(2)(b) landed on his front body afterward. Once he was face down on the ground, PO Uribe completed handcuffing § 87(2)(b) and PO Ahmed began leg shackling § 87(2)(b). PO Uribe and PO Ahmed denied recalling how it was determined to shackle § 87(2)(b) and Lt. Bennett denied giving this directive. PO Uribe picked up § 87(2)(b) by his left arm when he believed § 87(2)(b) was ready to be brought out of the stationhouse. PO Ahmed told PO Uribe that he had not completed shackling § 87(2)(b) and PO Uribe then placed § 87(2)(b) back onto the ground. PO Uribe denied dropping § 87(2)(b) onto the ground during this action. Lt. Bennett left behind the supervisor's desk and approached PO Uribe, PO Ahmed, and § 87(2)(b) in the holding cells where he observed § 87(2)(b) facedown, with his hands cuffed and ankles shackled. Lt. Bennett gave the directive for PO Uribe, PO Ahmed, PO Weber, and PO Espinoza to carry § 87(2)(b) outside to the police vehicle with each officer grabbing a corner of § 87(2)(b) body and lifting him off the ground to be carried that way. Lt. Bennett did not specify if § 87(2)(b) was to be carried face up or face down but stated that this process of carrying a prisoner flat was taught during the same training he had attended in October 2020, though the training did specify the prisoner was to be carried face up. Lt. Bennett had never given the directive for a prisoner to be carried this way before February 7, 2021 and has not given the directive to carry a prisoner this way since that date. PO Uribe grabbed § 87(2)(b) by his ankles, PO Weber grabbed § 87(2)(b) by his middle-left side torso, PO Ahmed grabbed § 87(2)(b) by his middle right-side torso, and PO Espinoza grabbed § 87(2)(b) by his shoulders and upper body. The four officers then lifted and carried § 87(2)(b) out of the holding cells, face down and approximately three feet off the ground. Lt. Bennett re-entered the area behind the supervisor's desk and did not observe the rest of the process in which § 87(2)(b) was carried outside (Board Review 13, 14, and 15). PO Payero has resigned and did not provide a statement.

Station-house video shows PO Uribe grabbing § 87(2)(b) ankles and lifting them off the ground while his upper body is against the desk, then pulling continually until § 87(2)(b) is dragged facedown to the ground (beginning at the 20:45 mark). PO Uribe places both his hands around § 87(2)(b) pants and ankles, then pulls multiple times until § 87(2)(b) lands facedown on the ground without any officer guiding his upper body. PO Ahmed is standing to the right of § 87(2)(b) and PO Payero is standing to the left, neither officer touches § 87(2)(b) while he is pulled onto the ground by

PO Uribe. PO Ahmed then leg shackles § 87(2)(b) and PO Uribe finishes handcuffing § 87(2)(b). Once PO Uribe has finished handcuffing § 87(2)(b) he stands over him, grabs him by the cuffs, and lifts him approximately one foot off the ground (beginning at the 21:12 mark). PO Ahmed says something inaudible to PO Uribe and PO Uribe drops § 87(2)(b) onto the ground and continues leaning over him. Lt. Bennett approaches the holding cells, and his right arm can be seen pointing to each corner of § 87(2)(b) body (beginning at the 21:51 mark). PO Uribe grabs § 87(2)(b) by his ankles, PO Ahmed grabs his right middle body, PO Weber grabs § 87(2)(b) waistband on his pants, and an officer who cannot be seen in the video grabs § 87(2)(b) front body. All four officers lift § 87(2)(b) and carry him out of the holding vestibule (Board Review 08).

Body-worn Camera (BWC) video from PO Ahmed captures Lt. Bennett's voice directing "Bring that motherfucker to the floor" (beginning at the 01:05 mark) but does not capture Lt. Bennett visibly. Once PO Ahmed's BWC is no longer obstructed, § 87(2)(b) can be seen falling to the ground and landing face first. PO Ahmed pulls a chair out from under § 87(2)(b) and begins shackling his ankles while PO Uribe cuffs § 87(2)(b) wrists. PO Uribe picks up § 87(2)(b) upper body and PO Ahmed tells him, "Hold on, hold on. Let me put the cuff" (beginning at the 01:34 mark) and PO Uribe releases § 87(2)(b) upper body and comes to the ground on top of him. Lt. Bennett approaches the holding cells (beginning at the 01:55 mark) and says, "No, he's going to stay right there. He thinks he runs shit up in here. Get the vehicle up and ready to go" and then "This is what we're going to do, two legs on him, two whatever, we're going to hop him up and we out of here." Lt. Bennett motions to § 87(2)(b) legs and arms while making this directive, though it is unclear which officers he is speaking to. § 87(2)(b) cannot be heard saying anything during this time and does not appear to be moving his body in any way (Board Review 04).

According to NYPD Patrol Guide Procedure 200-02 the mission of the New York City Police Department, members of service are instructed to treat citizens with courtesy and professionalism. This procedure also states that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy. Furthermore, according to Patrol Guide Procedure 203-10, members of service are explicitly prohibited from using discourteous language or remarks to address members of the public (Board Review 19 and 20).

PD v. Pichardo establishes that officers may use profanity when interacting with civilians when done in the context of a dynamic situation in which they are attempting to gain control. Officers may not use discourtesy language if it serves no legitimate law enforcement purpose (Board Review 21).

NYPD Patrol Guide Procedure 221-01 details that officers will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force (Board Review 18).

It is irrefutable that Lt. Bennett used profanity in his directive to bring § 87(2)(b) to the ground.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations C** be **Substantiated**.

It is without question that Lt. Bennett gave the directive to bring § 87(2)(b) to the ground. At the time of giving this order, Lt. Bennett knew that § 87(2)(b) had been arrested for shoplifting, a non-violent offense, and had not been physically combative during his arrest or lodging. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be **Substantiated**.

§ 87(2)(g)

§ 87(2)(g) PO Uribe brought § 87(2)(b) who was not resisting and secured against the wall by two officers, to the ground by pulling on his ankles until § 87(2)(b) fell face down onto the ground. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation E** be **Substantiated**.

§ 87(2)(g)

§ 87(2)(g) Stationhouse footage and BWC illustrate that § 87(2)(b) was not placed onto the ground but rather dropped by PO Uribe. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation F** be **Substantiated**.

Allegation (G) Force: Police Officer Marcelo Espinoza hit § 87(2)(b) against the ground.

It is undisputed that PO Espinoza was holding § 87(2)(b) by his front upper body and released his grip on § 87(2)(b) to open the stationhouse door, then picked § 87(2)(b) up to finish transporting him outside.

§ 87(2)(b) stated that PO Uribe, PO Ahmed, and several additional officers that § 87(2)(b) could not identify then picked § 87(2)(b) up a second time and carried him facedown to the exterior door of the stationhouse. Once on the interior side of the exterior door, the officers dropped § 87(2)(b) on his head to open the door. § 87(2)(b) jaw, which had been injured when initially brought to the ground in the holding cells, again hit the floor and caused him pain. In addition, § 87(2)(b) felt pain where he landed on his head (Board Review 09).

PO Uribe, PO Ahmed, PO Weber, and PO Espinoza provided consistent testimony that PO Espinoza carried § 87(2)(b) by his front upper body and was also the officer who opened the exterior stationhouse door. PO Espinoza stated that to do this, he removed only his left hand from § 87(2)(b) and used it to push the button which opens the door but kept his right hand on § 87(2)(b) and did not ever release him completely. After being shown his Body-Worn Camera video (Board Review 05), PO Espinoza revised his testimony that § 87(2)(b) was released from both his hands to open the door but that he placed § 87(2)(b) onto the ground to take this action and did not drop him. PO Espinoza confirmed that § 87(2)(b) head came into contact with the ground while the door was opened. PO Uribe, PO Weber, and PO Ahmed initially denied recalling if § 87(2)(b) was dropped by PO

Espinoza to open the stationhouse door. Upon reviewing PO Espinoza's same Body-Worn Camera video, PO Uribe and PO Weber both confirmed that it refreshed their recollection that PO Espinoza dropped § 87(2)(b) on his head to open the stationhouse door. Lt. Bennett denied being present for this portion of the incident and denied knowing if § 87(2)(b) was ever dropped on his head (Board Review 13, 14, 15, 16, and 17).

The stationhouse video does not capture any portion of the officers' transport of § 87(2)(b) after he is removed from the holding cells vestibule (Board Review 08).

Body-worn Camera (BWC) video from PO Ahmed does capture § 87(2)(b) head coming into contact with the ground when PO Espinoza opens the door (Board Review 04). PO Espinoza's BWC shows § 87(2)(b) head coming into contact with the ground, while the rest of his body is still elevated, while PO Espinoza opens the door (Board Review 05). BWC from PO Ahmed illustrates PO Espinoza grabbing § 87(2)(b) front upper body and carrying him to the exterior stationhouse door. PO Uribe says, "Get the door" and PO Espinoza responds, "I got it." Once reaching the stationhouse door, only PO Espinoza's waist is visible, and it cannot be seen what PO Espinoza's hands are doing or § 87(2)(b) body (beginning at the 02:22 mark) (Board Review 04). BWC video from PO Espinoza captures him approaching § 87(2)(b) grabbing his upper body, then lifting him off the ground. PO Espinoza carries § 87(2)(b) body until he and the officers reach the exterior stationhouse door, at which point PO Uribe directs him to open the door and PO Espinoza responds, "I got it." § 87(2)(b) head is then seen on the ground, though PO Espinoza's hands and how § 87(2)(b) head came to be onto the ground are not visible. PO Espinoza pushes the stationhouse door open with his right arm then places his right hand back onto § 87(2)(b) upper body and lifts him, continuing to carry him outside (beginning at the 01:01 mark) (Board Review 05).

NYPD Patrol Guide Procedure 221-01 details that officers will use only the reasonable force necessary to gain control or custody of a subject. In all circumstances, any application or use of force must be reasonable under the circumstances. If the force used is unreasonable under the circumstances, it will be deemed excessive and in violation of Department policy. When appropriate and consistent with personal safety, members of the service will use de-escalation techniques to safely gain voluntary compliance from a subject to reduce or eliminate the necessity to use force (Board Review 18).

§ 87(2)(g) the testimony of two other officers and § 87(2)(b) along with the BWC video, corroborate that PO Espinoza released his grip on § 87(2)(b) upper body to open the stationhouse door, causing § 87(2)(b) to hit his head on the ground. § 87(2)(g)

Therefore, it is recommended that **Allegation G** be **Substantiated**.

Allegation (H) Abuse of Authority: Police Officer Robert Uribe did not obtain medical treatment for § 87(2)(b)

Allegation (I) Discourtesy: Police Officer Robert Uribe spoke discourteously to § 87(2)(b)

It is undisputed that PO Uribe heard § 87(2)(b) complain of pain and told him to stop "running his fucking mouth."

Once outside the stationhouse, § 87(2)(b) was placed into the rear of PO Uribe and PO Ahmed's police vehicle. § 87(2)(b) complained to PO Uribe that he was injured and wanted to go to the hospital. PO Uribe told § 87(2)(b) that they would call an ambulance once arriving at Manhattan

Central Booking. Once § 87(2)(b) PO Uribe, and PO Ahmed arrived at Manhattan Central Booking, § 87(2)(b) again asked for an ambulance and the officers ignored his request. Once determining that the court was closed, and § 87(2)(b) would be unable to see a judge, PO Uribe, and PO Ahmed transported § 87(2)(b) back to the 28th Precinct Stationhouse. § 87(2)(b) was released the following morning. § 87(2)(b) was never brought to the hospital and did not receive medical attention while in custody. § 87(2)(b) had no further contact with the officers after being released on February 8th. § 87(2)(b) went to § 87(2)(b) Hospital after being released and a CT scan showed that § 87(2)(b) jaw had been injured and was possibly fractured. § 87(2)(b) § 87(2)(b) went to § 87(2)(b) Hospital and an additional X-Ray revealed the same fracture in § 87(2)(b) jaw. § 87(2)(a) – PHL 18(6)

HIPAA forms were sent to § 87(2)(b) and § 87(2)(b) was followed up with several times, though he resides in a homeless shelter and was unable to be reached again after his initial interview. HIPAA forms and medical records were unable to be obtained (Board Review 10, 11, and 12).

Once through the stationhouse door, the officers approached the police vehicle and PO Uribe first placed § 87(2)(b) feet onto the ground so that he was standing upright, then PO Weber, PO Ahmed, and PO Espinoza released § 87(2)(b) once he was standing on his own. § 87(2)(b) was then guided into the rear of the police vehicle by PO Weber and PO Uribe. Once sitting upright in the rear of the vehicle, § 87(2)(b) said, “I’m hurt” and that he was going to file a lawsuit. PO Uribe confirmed he heard § 87(2)(b) complaint and that he responded, “Stop running your fucking mouth.” PO Uribe used this phrase because he was frustrated and stated that it had no police function. PO Uribe did not obtain an ambulance for § 87(2)(b) after he made this statement because § 87(2)(b) did not specifically request one. PO Uribe denied observing any injuries on § 87(2)(b) and denied that § 87(2)(b) ever specifically requested medical attention. The officers then brought § 87(2)(b) to Manhattan Central Booking and then back to the 28th Precinct Stationhouse. PO Uribe denied having any further contact with § 87(2)(b) after he was returned to the stationhouse and denied knowing if § 87(2)(b) ever obtained medical treatment (Board Review 14).

Body-worn Camera (BWC) video from PO Espinoza illustrates § 87(2)(b) saying, “I’m hurt” and PO Uribe responding, “Stop running your fucking mouth then” and § 87(2)(b) says, “I’m hurt” a second time (beginning at the 02:22 mark) (Board Review 05). The same interaction is captured on PO Ahmed’s BWC (beginning at the 03:44 mark) (Board Review 04).

Patrol Guide Procedure 210-04 states that officers must request an ambulance when a prisoner in custody requires medical treatment (Board Review 22).

According to NYPD Patrol Guide Procedure 200-02 the mission of the New York City Police Department, members of service are instructed to treat citizens with courtesy and professionalism. This procedure also states that one of the primary values of the NYPD is to respect the dignity of individuals and provide police services with civility and courtesy. Furthermore, according to Patrol Guide Procedure 203-10, members of service are explicitly prohibited from using discourteous language or remarks to address members of the public (Board Review 19 and 20).

PD v. Pichardo establishes that officers may use profanity when interacting with civilians when done in the context of a dynamic situation in which they are attempting to gain control. Officers may not use discourtesy language if it serves no legitimate law enforcement purpose (Board Review 21).

§ 87(2)(g)
as shown in the BWC, § 87(2)(b) clearly and

repeatedly stated to PO Uribe that he was hurt. § 87(2)(g)

Therefore, it is recommended that **Allegations H** be **Substantiated**.

It is undisputed that PO Uribe heard § 87(2)(b) complain of being injured § 87(2)(g)

Therefore, it is recommended that **Allegations I** be **Substantiated**.

Civilian and Officer CCRB Histories

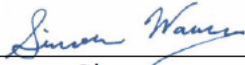
- § 87(2)(b)
- Lt. Mervin Bennett has been a member of service for 24 years and has been a subject in 22 CCRB complaints and 41 allegations, none of which were substantiated. § 87(2)(g)
- PO Kazi Ahmed has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Marcelo Espinoza has been a member of service for five years and has been a subject in two CCRB complaints and seven allegations, none of which were substantiated. § 87(2)(g)
- PO Damian Weber has been a member of service for three years and has been a subject in three CCRB complaints and 11 allegations, of which five were substantiated.:
 - #202003791 involved substantiated allegations of Abuse: Sex Misconduct (Sexual Harassment, Verbal), Abuse: Threat of Force, and Discourtesy: Word against PO Weber. The Board recommended Command Discipline and Charges, and the NYPD imposed Charges.
 - #202100465 involved substantiated allegations of Abuse: Gun Drawn and Abuse: Stop against PO Weber. The Board recommended Command Discipline and the NYPD imposed Charges. § 87(2)(g)
- PO Robert Uribe has been a member of service for 17 years and has been a subject in eight CCRB complaints and 26 allegations, of which three were substantiated.:
 - #201905111 involved substantiated allegations of Abuse: Threat of Arrest and Discourtesy: Action against PO Uribe. The Board recommended Command Discipline and the NYPD imposed No Penalty.
 - #201906612 involved a substantiated allegation of Discourtesy: Word against PO Uribe. The Board recommended Instructions and the NYPD imposed Instructions. In the current case, it was alleged that PO Uribe used a Discourtesy: Word against § 87(2)(b) § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York claiming emotional distress, negligent infliction of emotional distress, failure to intervene, and negligent retention and hiring and seeking \$1,000,000 as redress (Board Review 24 and 25). There is no 50H hearing scheduled.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad: 15

Investigator:	Cloey Romans	Inv. Cloey Romans	6/16/2022
	Signature	Print Title & Name	Date

Squad Leader:		IM Simon Wang	06/15/22
	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date